

MEMORANDUM TO THE FILE

Subj: USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

IDENTIFICATION OF SOURCE:

Vendor Name: National Instruments

Vendor City/State: 11500 N Mopac Expy, Austin, TX 78759

Cage: 64667

Total Dollar Value: [REDACTED]

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, and the required delivery date/period of performance.

NSWC Crane code JXMT uses National Instruments Data Acquisition Devices as part of laboratory battery test stations. We run customized LabView code to provide control of our test systems along with acquiring the required data that is proprietary to National Instruments devices. The lab is uniform with cRIO-9045 except two stations that need updated to match the others. Our required data is acquired using specific cards and they are calibrated. We have experienced failures of three cards and they need replaced ASAP - these are NI-9205 cards. We need these devices as soon as possible - July 2026.

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select applicable area below to open specific form)

- ☐ A. ONLY ONE RESPONSIBLE SOURCE
- ☒ B. BRAND NAME
- ☐ C. UNUSUAL AND COMPELLING URGENCY

A. ONLY ONE RESPONSIBLE SOURCE (select all that apply):

1. RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

2. EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

3. OTHER REASONS. Other reason not identified above. Provide details on mission impact if requirement is not solicited from only one source.

If the Government were to compete and any vendor other than NI were awarded this effort, its battery test systems would not interface with the VBTS software rendering the universal set of test procedures inoperable. In order to keep the function of the universal set of test hardware and procedures, the Government would have develop a new set of universal test procedures based on that vendor's software. In addition, the Government would have to replace the existing battery test systems to ensure all systems would be capable of utilizing the universal set of test procedures. The total cost in software development, hardware development, training, and documentation for all the current battery test systems is approximately [REDACTED]. As noted above JXM currently has 43 NI battery test stations and the replacement costs would total around [REDACTED] based off previous costs. Thus, awarding to a vendor other than NI would cost the Government [REDACTED].

B. BRAND NAME. Item required must be a brand name product, or feature of a product, particular to one manufacturer.

National Instruments is the required data acquisition devices for our laboratory. Our lab has customized software for data acquisition and control which will only run on National Instruments cRIO devices.

JXMT currently utilizes National Instruments equipment [REDACTED]
[REDACTED] National Instruments equipment solely utilizes LabView software which is only guaranteed to work with other National Instrument data acquisition systems. This means that this software will only communicate with other National Instruments lab equipment with LabView software unless it has been specially modified to interface with other equipment.

If other than National Instruments data acquisition equipment were to be awarded, the Government would have to replace the existing battery test systems to ensure all systems would be capable of utilizing the universal set of test procedures. The total cost in software development, hardware development, training, and documentation for all the current battery test systems is approximately [REDACTED]. As noted above JXM currently has 43 NI battery test stations and the replacement costs would total around [REDACTED] based off previous costs. Thus, awarding to a vendor other than NI would cost the Government [REDACTED].

C. UNUSUAL AND COMPELLING URGENCY. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits, bids, or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance
3. Explanation of why delivery/commencement of services by the date mentioned above is required:
4. If appropriate, include any additional pertinent information.

IV. CERTIFICATION/APPROVALS:

A. Technical / Requirements Certifications: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

		03/18/2026
_____ Signature	_____ Name (Printed) / Phone #	_____ Date

B. Certification / Approval

Upon the basis of the above statements and information justification, I hereby approve, as the Contracting Officer, the solicitation of the proposed procurement(s) using other than full and open competition.

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Contracting Officer Signature

Name (Printed) / Phone #

Date